

Pradeep Yadav And Ors. vs The State Of U.P And Anr. on 12 July, 2022

Author: Dinesh Kumar Singh

Bench: Dinesh Kumar Singh

HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

?Court No. - 10

Case :- APPLICATION U/S 482 No. - 2644 of 2012

Applicant :- Pradeep Yadav And Ors.

Opposite Party :- The State Of U.P And Anr.

Counsel for Applicant :- A.B Solomon

Counsel for Opposite Party :- Govt. Advocate,Ajit Singh,Deepak Singh,Sant Vijai,Sant Vij

Hon'ble Dinesh Kumar Singh,J.

1. Heard Mr. A.B. Solomon, learned counsel for the applicants and Mr. S.N. Goswami, learned AGA, as well as Mr. S.N. Singh Gaharwa, learned counsel for respondent no. 2, and gone through the record.

2. Learned counsel for the respondent no. 2, however, submits that respondent no. 2 has not responded and, he has no instructions.

3. By way of this application under Section 482 CrPC, applicants have prayed for quashing of charge-sheet no.37 of 2010 dated 22.01.2010 filed in Crime No.0995 of 2009, under Sections 498-A, 323, 504 and 420 IPC read with Section 3/4 Dowry Prohibition Act lodged at Police Station Madiaon, District Lucknow as well as for quashing of Criminal Case No.197 of 2010, pending in the Court of Additional Chief Judicial Magistrate 5, Lucknow.

4. Marriage between the applicant no. 1 and respondent no. 2 was performed on 07.05.1999 at Avadh Palace Guest House, Sitapur Road, Lucknow. It appears that soon after the marriage, dispute/differences arose and litigation started between the parties. First information report came to be registered on 28.11.2019 against applicant nos. 1 to 6 at Police Station Madihon, Lucknow, which was registered as FIR No.0995 of 2009, under Sections 498-A, 323, 504 and 420 IPC read with Section 3/4 Dowry Prohibition Act.

5. Investigating agency, on completion of the offence, filed charge-sheet no.37 of 2010 dated 22.01.2010 against the applicants. Cognizance was taken in Criminal Case No.197 of 2010 on the said charge-sheet by the Additional Chief Judicial Magistrate-5, Lucknow. It appears that respondent no. 2 also filed divorce petition under Section 13 of the Hindu Marriage Act, besides two other FIRs against the applicants.

6. During the proceedings before the Family Court, the parties were referred to the Mediation Center and, they, with the help of Mediators, decided to put at an end the ongoing litigation between them and, take divorce by mutual consent. Copy of the said compromise has been placed on record. In para-5 of the compromise, it has been specifically stated that all the criminal cases instituted by respondent no. 2 shall not be prosecuted and the respondent no. 2 would cooperate in quashing of criminal proceedings, including the criminal proceedings impugned in this application, against the applicants. In para-7 of the compromise, it has been mentioned that the parties would file a petition under Section 13(b) of the Hindu Marriage Act before the Family Court for taking divorce by mutual consent.

7. In compliance of the aforesaid compromise arrived at between the parties, the parties filed petition under Section 13(b) of the Hindu Marriage Act for taking divorce by mutual consent and, the learned Principal Judge, Family Court vide order dated 25.07.2012 allowed the said petition under Section 13(b) of the Hindu Marriage Act in Original Case No.175 of 2012 and passed decree of divorce.

8. 10 years have gone-by since the decree of divorce was granted by the Family Court and, in every likelihood respondent no. 2 would have settled in her life. Neither respondent no. 2 is coming forth nor she is giving instructions to her counsel.

9. In view thereof, considering facts and circumstances of the case, taking into consideration the compromise, arrived at between the parties, on the basis of which divorce by mutual consent has been granted by the learned Family Court, and also taking into consideration the ratio laid down by the Supreme Court in the cases of B. S. Joshi and others versus State of Haryana and another : (2003) 4 SCC 675, Nikhil Merchant versus C.B.I. and another : (2008) 9 SCC 677, Manoj Sharma versus State and others : (2008) 16 SCC 1, Gian Singh versus State of Punjab: (2010) 15 SCC 118 and Narinder Singh and others versus State of Punjab and another: (2014) 6 SCC 466, it would be appropriate to quash the criminal proceedings as continuance of the same would be an exercise in futility.

10. Ordered accordingly.

11. Allowed.

Order Date :- 12.7.2022 MVS/-